General Conditions of Contract

Food Service India Pvt Ltd

At

Satara Maharashtra

Package	Door and Dock Leveller Work
Document	General Conditions of Contract (GCC)
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General conditions of contract

1.0 Definitions

In the contract (as hereinafter defined) the following words and expressions shall have the meanings assigned to them except where the context otherwise requires.,

(i) **"Employer"** means (**Food Service India Pvt Ltd**) having their registered office at **Solitaire Corporate Park, Bldg No. 5, 7th Floor Andheri Kurla Road, Chakala, Andheri (E), Mumbai-400093, Maharashtra, India.**

(ii) and authorised representatives appointed by the Employer from time to time to provide professional design services OR project &/or construction management services OR inspection services.

(iii) **"Contractor"** means the person or persons, **fir**m, Company, partnership, Corporation, Joint venture or Consortium of firm / companies, whose tender has been accepted by the Employer and who is undertaking the execution and completion of the Works, under the terms of the Contract and includes the Contractor's personal representatives, successors and permitted assigns.

(iv) **"Works"** means Permanent Works and the Temporary Works or either of them as appropriate and be construed and taken to mean the Works by or by virtue of the Contract contracted to be executed whether temporary or permanent and whether original, altered, substituted or additional and includes obligations to be carried out either on the Site or at any factory or workshop or other place for subsequent incorporation, as required for the performance of the Contract.

(v) **"Tender"** means the Contractor's priced offer to the Employer for the execution and completion of the works and the remedying of any defects therein in accordance with the provisions of the Contract.

(vi) **"Contract"** means the contract entered into between the Employer and the Contractor setting forth the obligations of the parties for the execution of the Works in accordance with the Contract Documents hereinafter defined.

(vii) **"Contract Documents"** means collectively the tender notice, information on tender and instruction to tenderers, scope of works, quality control, safety requirements, general and special conditions of contract, specifications, drawings, schedules, tender including the Bill of Quantities / Schedule of works and tender prices, letter of acceptance, agreement and all addenda and attachments related to the above and such other documents as may be expressly incorporated in the letter of acceptance.

(viii) **"Contract Sum" / "Contract Price"** means the sum stated in the Letter of Acceptance as payable to the Contractor for the execution and completion of the works and the remedying of any defects therein in accordance with the provision of the Contract.

(ix) **"Contract period / Contract time / Completion Period"** means the period of time (number of calendar days or months or years) shown in the tender allowed for completing the execution of the works and passing of the tests on completion of the works as set forth in the contract or as extended under Clause 8 calculated from the commencement Date.

(x) **"Commencement date"** means the date from which the Contractor is required to commence works in conformity with the notice issued by the Employer.

(xi) **"Defects Liability period"** means the period reckoned from the date of issue of Taking over Certificate by the Employer to the date specified in Annexure I (Contract Provisions) of Contract Agreement during which period the completed works has to function without any trouble and the Contractor shall maintain the Works free of defects.

(xii) **"Tests on completion"** means the tests specified in the Contract or otherwise agreed by the Employer and the Contractor which are to be carried out by the Contractor before the Works or any section or part thereof are taken over by the Employer.

(xiii) **"Taking over Certificate"** means a certificate issued by the Employer to record the taking over of the permanent works by the Employer from the Contractor, referred to in Clause 9.6.

(xiv) **"Approved"** means approval in writing including subsequent written confirmation of previous verbal approval and "Approval" means approval in writing including as aforesaid.

(xv) **"Contractor's equipment"** means all equipment, appliances or things of whatsoever nature (other than Temporary works) required for the execution, completion or maintenance of the works or Temporary works but does not include materials or other things intended to form or forming part of the Permanent Works.

(xvi) **"Day"** means a day from midnight to midnight irrespective of the number of hours worked in that day and shall include all calendar days without exception.

(xvii) **"Drawings"** means the drawings mentioned in the Contract Document, any modification of such drawings approved in writing by the Employer and such other drawings as may from time to time be furnished or approved in writing by the Employer and all drawings, calculations, samples, patterns, models, operation and maintenance manuals and other technical information of a like nature submitted by the Contractor and approved by the Employer.

(xviii) **"BIS / ISI"** means specifications as issued by the Bureau of Indian Standards as current and amended up to thirty days prior to the receipt of Tender.

(xix) **"Month"** means from the beginning of a given date of a calendar month to the end of the preceding date of the next calendar month.

(xx) **"Plant"** means machinery, apparatus and the like intended to form or forming part of the permanent works.

(xxi) **"Permanent Works"** means the Permanent work to be executed including plant to be installed in accordance with the contract.

(xxii) **"Retention Money"** means the aggregate of all monies retained by the Employer pursuant to Clause 18 & Clauses therein.

(xxiii) **"Rupees"** means Rupees of Indian currency.

(xxiv) **"Section"** means a part of the Works specifically identified in the contract as a section.

(xxv) **"Site"** means the land and other places on, under, in or through which the works are to be executed or carried out and any other lands or places provided by the Employer for the purposes of the Contract, together with such other places or as may be specifically designated in the contract or subsequently approved as forming part of site.

(xxvi) **"Temporary Works"** means temporary works of every kind (other than Contractor's Equipment) required in or about the execution and completion of the works and remedying of defects therein.

(xxvii) **"Specifications"** means the specification of the works included in the Contract and any modification thereof or addition thereto made under Clause 11.1 or submitted by the Contractor and approved by the Employer.

(xxviii) **"Week"** means seven consecutive days without regard to the number of hours worked in any day of that week.

(xxix) **"Notice in Writing or Written Notice"** means any hand written, type written or printed communication including Telex, Cable or facsimile transmission; Telex, Cable or facsimile transmissions to be confirmed in writing subsequently.

2.0 Instructions in writing

Instructions given by the Employer / Employer's representative shall be in writing, provided that if for any reason the Employer considers it necessary to give any such instruction orally, the Contractor shall comply with such instruction. Confirmation in writing of such oral instruction given by the Employer / Employer's representative whether before or after the carrying out of the instruction, shall be deemed to be an instruction within the meaning of this clause. Provided further that if the Contractor, within 7 (Seven) days, confirms in writing to the Employer any oral instruction of the Employer and such confirmation is not contradicted in writing within 7 (Seven) days by the Employer, it shall be deemed to be an instruction of the Employer.

3.0 Assignment of contract

The Contractor shall not, without the prior written consent of the Employer (which consent, shall be at the sole discretion of the Employer), assign the Contract or any part thereof, or any benefit or interest therein or there under, otherwise than by:

(a) a charge in favour of the Contractor's bankers of any monies due or to become due under the Contract, or

(b) assignment to the Contractor's insurers (in cases where the insurers have discharged the Contractor's loss or liability) of the Contractor's right to obtain relief against any other party liable.

4.0 Type of contract and priority of documents

4.1 Type of contract

The Contract shall be a **Lump Sum** contract as indicated in the Contract Documents. Detailed measurements of approved items of works as ordered and executed shall be jointly recorded.

4.2 Priority of documents

The several documents forming the Contract are to be taken as mutually explanatory of one another, but in case of ambiguities or discrepancies the same shall be explained and adjusted by the Employer who shall thereupon issue to the Contractor instructions thereon and in such event, unless otherwise provided in the Contract, the priority of the documents forming the Contract shall be as follows:

(i) The Contract Agreement (if completed)
(ii) The Letter of Acceptance;
(iii) Special conditions of contract
(iv) General conditions of contract
(v) Priced Bill of quantities / schedule of works;
(vi) Technical specifications;
(vii) Drawings;
(viii) Any other document forming part of the Contract.

5.0 Other requirements

5.1 Contract agreement

The Contractor shall whenever called upon to do so enter into and execute the Contract Agreement, to be prepared and completed at the cost of the Employer, in the form annexed to these Conditions with such modification as may be necessary.

5.2 Work to be in accordance with contract

The Contractor shall execute, perform and complete the Works and remedy any defects therein in strict accordance with the Contract to the satisfaction of the Employer. The Contractor shall comply with and adhere strictly to the Employer's Instructions on any matter, whether mentioned in the Contract or not, touching or concerning the Works. The Contractor shall take instructions only from the Employer or from the Employer's Representative. Instructions, if any of the Employer, shall also be conveyed by the Employer's representative.

5.3 Programs

5.3.1 Program to be submitted

The Contractor shall, within a period of 7 (seven) days after the date of the Letter of Acceptance, submit to the Employer for his consent a programme, in such form and detail as the Employer shall reasonably prescribe, for the execution of the Works. The Contractor shall, whenever required by the Employer, also provide in writing for his information a general description of the arrangement and methods which the Contractor proposes to adopt for the execution of the Works and of the Contractor's equipment and the temporary works which the Contractor intends to provide. All submissions of programme, calculations and other data shall be in three copies.

5.3.2 Revised program

If any time it should appear to the Project & Construction Manager that the actual progress of work does not conform to programme to which consent has been given under the preceding Clause 5.3.1, the Contractor shall produce the revised programme showing the modification to such programme necessary to ensure completion of the works within the Time of Completion.

5.4 Contractor's superintendence

The Contractor shall provide all necessary superintendence during the execution of the Works and as long thereafter as the Employer may consider necessary for the proper fulfilment of the Contractor's Obligations under the Contract.

The Contractor, or a competent and authorised representative approved by the Employer, which approval may at any time be withdrawn, shall give his whole time to the superintendence of the Works. Such authorised representative shall receive, on behalf of the Contractor, instructions from the Employer/ Employer's Representative and such notices and instructions given to the authorised Representative shall be deemed to have been given to the Contractor.

If approval of the representative is withdrawn by the Employer, the Contractor shall, as soon as is practicable, having regard to the requirement of replacing him as hereinafter mentioned, after receiving notice of such withdrawal, remove the representative from the works and shall not thereafter employ him again on the Works in any capacity and shall replace him by another representative approved by the Employer.

5.5 Contractors employees

The Contractor shall provide on the Site in connection with the execution and completion of the Works and the remedying of any defects therein:

(a) only such technical assistants as are skilled and experienced in their respective responsibilities and such foremen and leading hands as are competent to give proper superintendence of the Works; and

(b) such skilled, semi -skilled, unskilled labour and licensed workmen as are necessary for the proper and timely fulfilling of the Contractor's obligations under the Contract.

(c) The Contractor shall not employ any person who is under the age of 18 years.

5.6 Employer at liberty to object

The Employer/ Employer's representative shall be at liberty to object to and require the Contractor to remove forthwith from the works, any person provided by the Contractor who, in the opinion of the Employer, misconduct himself, or is incompetent or negligent in the proper performance of his duties, or whose presence on site is otherwise considered by the Employer to be undesirable, or in the interest of peace and protection of persons and property, and such person shall not be again allowed upon the Works without the consent of the Employer. Any person so removed from the Works shall be replaced as soon as possible.

5.7 Setting out

The Contractor shall be responsible for:

(a) Preliminary works such as marking / checking layout of structures on ground and reference lines and fixing temporary bench marks.

(b) the accurate setting-out of the Works in relation to original points, lines and levels of reference given by the Employer in writing.

(c) the correctness, subject as above mentioned, of the position, levels dimensions and alignment of all parts of the Works, and

(d) the provision of all necessary measuring and survey instruments including steel tape, theodolite, level etc., appliances and labour in connection with the foregoing responsibilities.

(e) The Contractor shall give to the Employer not less than 24 (Twenty Four) hours notice of his intention to set out or give levels to enable Employer's representative make timely arrangements for giving reference lines, levels and points.

(f) If, at any time during the execution of the Works, any errors appear in the position, levels, dimensions or alignment or any part of the Works, the Contractor, shall at his own cost, rectify such error to the satisfaction of the Employer.

(g) The checking of any setting-out or of any line or level by the Employer shall not in any way relieve the Contractor of his responsibility for the accuracy thereof and the Contractor shall carefully protect and preserve all bench-marks, sight-rails, pegs and other things used in setting out the Works.

(h) The Contractor shall take precautions to ensure that the lines, points, bench marks fixed by the Employer are not disturbed and shall make good any damage at his own cost.

5.8 Safety, security & protection of environment

The Contractor shall, throughout the execution and completion of the works and the remedying of any defects therein:

(a) have full regard for the safety of all persons entitled to be upon the site and keep the Site and the Works in an orderly state appropriate to the avoidance of danger to such persons, and

(b) provide and maintain at his own cost all lights, guards, fencing, warning signs and watching, when and where necessary or required by the Employer or by any duly constituted authority, for the protection of the Works or for the safety and convenience of the public or others and shall have proper fire protection equipment.

(c) supply, fix and maintain at his own cost all necessary centring, scaffolding, staging, planking, timbering, strutting, shoring, pumping, hoarding for the proper performance of the Contract and protection of the said Works. The Contractor shall take down and remove any or all such centring, scaffolding, staging, planking, strutting, shoring, etc. as occasion shall require or when ordered to do so and shall fully reinstate and make good as and when required.

(d) remove all rubbish from the site as it accumulates and keep clean surface and soil drains. All the areas of Contractor's operation shall be cleared before returning them to the Employer.

(e) protect adjoining sites against structural, decorative and other damages that could be caused by the execution of the Works and make good damage, if any.

(f) protect any trees, shrubs etc. as applicable by the statues / existing landscaping within the premises, if applicable.

(g) take proper precautions and prior approvals from Employer and relevant authorities in case any demolition works / explosion / blasting works are required. The Contractor shall exercise proper safety norms and precautions to prevent any damage to any living being and to any structure within the Employer’s premises or outside it.

The Contractor and Subcontractors / vendors engaged by / working for the Contractor, shall comply with the safety precautions, protective measures, house keeping requirements, etc. The Employer with due intimation shall have the right to stop the work at site, if in his opinion proceeding with the work will lead to an unsafe and dangerous condition. Contractor shall get

the unsafe condition removed or provide protective equipment. Contractor shall ensure that all workmen are aware about the nature of risk involved in their work and have adequate knowledge for carrying our their work safely. The contractor shall be held responsible for non-compliance if any of the safety measures and delays, implications, injuries, fatalities and compensation arising out of such situations or incidents.

5.9 Prevention of pollution

The Contractor shall take all reasonable precautions to prevent pollution of water, air and surroundings. All statutory compliances shall be followed and authority approvals / certifications shall be obtained by the Contractor at his own costs. The Employer is deemed to be indemnified by the Contractor from all issues arising due to pollution caused by the Contractor and any authority actions / penalties as a result of such pollution.

5.10 Care of works

The Contractor shall take full responsibility for the care of the Works and materials and Plant for incorporation therein and for taking precaution to prevent loss or damage and to minimise loss or damage to the greatest extent possible that may happen to the Works, material and Plant from the commencement date until the date of issue of Taking-Over-Certificate for the whole of the Works, when the responsibility for the said care shall pass to the Employer. Provided that the Contractor shall take full responsibility for the care of any outstanding Works and materials and Plant for incorporation therein which he undertakes to finish during the Defects Liability Period until such outstanding Works have been completed.

5.11 Responsibility to rectify loss or damage

If any loss or damage happens to the Works, or any part thereof, or materials or Plant for incorporation therein, during the period for which the Contractor is responsible for the care thereof, from any cause whatsoever including neglect of himself, of his employees, of his Subcontractor and his employees, other than the risks defined in Clause 5.12, the Contractor shall, at his own cost, rectify such loss or damage so that the Permanent Works conform in every respect with the provision of the Contract to the satisfaction of the Employer. The Contractor shall also be liable for any loss or damage to the Works occasioned by him for the purpose of complying with the obligations under Clauses 11 & 12 & their Clauses.

5.12 Risks for which contractor is not responsible

The Contractor will not be responsible for loss or damage to the Works arising out of:

(a) War, hostilities, war like operations (whether war be declared or not), invasion, act of foreign enemies;

(b) rebellion, revolution, insurrection, or military or usurped power, or civil war;

(c) ionising radiation’s, or contamination by radio-activity from any nuclear fuel, or from any nuclear waste from the combustion of nuclear fuel, radio-active toxic explosive, or other hazardous properties of any explosive nuclear assembly or nuclear component thereof;

(d) loss or damage directly due to the use or occupation by the Employer of any Section or part of the Permanent Works, except as may be provided for in the Contract;

(e) loss or damage to the extent that it is due to the design of the Works, other than any part of the design provided by the Contractor or for which the Contractor is responsible.

5.13 Insurance of works

Without limiting the Contractor's obligations and responsibilities mentioned elsewhere the Contractor shall insure the entire works covered in this contract and take a consolidated `Contractor's All Risk ' (CAR) Policy to cover all obligations of the Employer. This Policy will NOT, however, cover Contractor's obligations/ responsibilities for workmen and also Contractor's equipment. Contractor will be required to indemnify the Employer at all times against this liability. The Contractor will take a separate insurance to cover claims arising out of any accident to his workmen and also for his plant and machinery.

5.14 CAR policy

The CAR Policy shall be taken for a sum, which is 15% (fifteen percent) higher than the value of contract after including the cost of all materials to be supplied by the Employer (either supplied free of cost or at a basic rate). The said CAR policy shall be valid for 6 (Six) months beyond the date of completion and extension of time if any. The Employer shall be the beneficiary and the Contractor shall deposit the CAR policy with the Employer.

Notwithstanding stated above, the Employer reserves the right to obtain the "Contractor all Risks Policy" on behalf of the Contractor and debit the relevant charges to the Contractor. However, the responsibilities of follow-up & required assistance to the Insurance authority in case of any claims/clarifications and submission of any relevant Documents will be of the Contractor.

5.15 Contractors obligations for compliance with respect to CAR policy

It is obligatory for the Contractor to comply with various terms and conditions of this Policy. In the event of loss / damage, Contractor will assist Employer to establish claims under this Policy by furnishing necessary documentary evidence. In case the Contractor fails to produce adequate evidence and any claim under this Policy which is not accepted by Insurance Company, the Contractor will be liable to make good the loss resulting therefrom at his cost and the said cost will be recovered by the Employer from the Contractor's bills.

5.16 Damage to persons or property

The Contractor shall, except if and so far as the Contract provides otherwise, indemnify the Employer against all losses and claims in respect of:

(a) death of or injury to any person, or
(b) loss or damage to any property which may arise out or in consequence of the execution and completion of the Works and the remedying of any defects therein, and against all claims, proceedings, damages costs, charges and expenses whatsoever, in respect thereof or in relation thereto.

5.17 Third party insurance

The Contractor shall, without, limiting his or the Employer's obligations and responsibilities under Clause 5.15 insure, in the joint names of the Contractor and the Employer, against liabilities for death of or injury to any person arising out of the performance of the Contract.

5.18 Accident or injury to workmen

The Employer shall not be liable in respect of any damage or compensation payable to any workman or other person in the employment of the Contractor or any Subcontractor. The Contractor shall indemnify and keep indemnified the Employer against all such damages and compensation, against all claims, proceedings, damages, costs, charges and expenses whatsoever in respect thereof or in relation thereto.

The Contractor shall also effect insurance to cover assault or injury to any of their employees.

The Contractor shall in addition report to the Employer within 24 hours of the occurrence of an accident at Site resulting in death or which is so serious and to likely to result in death of workmen or employees.

5.19 Insurance against accident to workmen

The Contractor shall insure against such liability and shall continue such insurance during the whole of the time that any persons are employed by him on the Works. Provided that, in respect of any persons employed by any Subcontractor, the Contractor's obligations to insure as aforesaid under this Clause shall be satisfied if the subcontractor shall have insured against the liability in respect of such persons in such manner that the Employer is indemnified under the policy, but the Contractor shall require such Subcontractor to produce to the Employer, when required, such policy of insurance and the receipt for the payment of premium for the current policy.

The Contractor shall be responsible for the safety of all employees and/or workers employed or engaged by him on and in connection with the works and shall forthwith report all cases of accidents to any of them, however caused and whenever occurring, to the employer or his

representative and shall make every arrangement to render all possible assistance and aid to the victims of the accident.

5.20 Responsibilities for workmen

The Contractor shall at all times indemnify the Employer against all claims, damages or compensation under the provisions of the Payment of Wages act, 1938, Minimum Wages Act, 1948, Employer's Liability Act, 1938, Workmen's Compensation Act, 1923, Fatal Accidents Act, Apprentices Act, 1961, Industrial Disputes Act, 1947, and Contract Labour (Regulation and Abolition) Act, 1970 or any modification thereof or any other Law relating thereto (including common law) and Rules made thereunder from time to time.

5.21 Compliance with statues & regulations

The Contractor shall conform in all respects, including by the giving of all notices and the paying of all fees, with the provisions of:

(a) any National or State Statute, Ordinance, or other Law, or any regulation, or bye-law of any local or other duly constituted authority in relation to the execution and completion of the Works and the remedying of any defects therein, and

(b) the rules and regulations of all public bodies and companies whose property or rights are affected or may be effected in any way by the Works, and the requirements of any water, lighting and other Companies or Authorities with whose systems the Works is proposed to be connected, and the Contractor shall keep the Employer indemnified against all penalties and liability of every kind for breach of any such provisions. The Contractor shall bring to the notice of the Employer all notices required by the said Acts, Regulations or Bylaws to be given to any Authority by the Employer and also obtain necessary approvals / sanctions of the authorities at his cost, Provided always the Employer shall be responsible for obtaining any planning, zoning or other similar permission required for the Works to proceed. The Contractor shall deposit the receipts of payments with Employer.

(c) The Contractor should submit proofs of various licenses, permits, insurance policies etc. to Employer prior to commencement of Works.

(d) Royalties for excavation materials, underground water, mining operations etc., if applicable, shall be borne by the Contractors. All costs towards such items are deemed to be included in the Contract Sum / Contract Price without any variations.

(e) Compliance to statues and regulations also means compliance to working hours restrictions, traffic restrictions etc. if any, imposed by the relevant authorities. The Contractor is deemed to have familiarised himself with such issues and accounted for them while committing to the schedule.

(f) The Contractor shall bear all costs and charges for special or temporary roads required by him in connection with access to the site. The Contractor shall also provide at his own cost any additional facilities outside the Site required by him for the purpose of the Works.

5.22 Opportunities & facilities for other contractors

The Contractor shall, in accordance with the requirements of the Employer, afford all reasonable opportunities and facilities including sharing of available supply of Water and Electric power for carrying out their work to:

a). any other Contractors employed by the Employer and the Workmen,

b). the workmen of the Employer, and

c). the workmen of any duly constituted authorities who may be employed in the execution on or near the Site of any work not included in the Contract or of any contract which the Employer may enter into in connection with or ancillary to the Works.

d). Employer, with due notification, reserves the right to perform or have performed in and about the Works during the time when the Contractor is performing his work hereunder, such other work as Employer desires, and the Contractor shall make all reasonable effort to perform his work hereunder in such manner as will enable such other work to be performed without hindrance and shall make no claim for damage against Employer arising out of such other work or interference therefrom. The Contractor shall work in harmony with such other contractors and any dispute between the contractors shall be mediated and if so required arbitrated by Employer.

e). Contractor shall satisfy himself in good time before commencing the Works as to the position, dimensions and suitability of any previous work which may in any way affect the works (including without restriction any surface to which the Contractor is to fix or lay his work) and shall immediately advise Employer in writing if such previous work is out of position, wrongly dimensioned or in any other way unsuitable, so that necessary action may be taken.

5.23 Contractor to keep site clear

During the execution of the Works, the Contractor shall keep the Site clean and free from debris, all unnecessary obstruction and shall store or dispose of any Contractor's Equipment and surplus materials and clear away and remove from the Site any wreckage, rubbish or Temporary Works no longer required.

5.24 Clearance of site on completion

Upon the issue of any Taking-Over-Certificate, the Contractor shall clear away and remove from the part of the Site to which such Taking-Over-Certificate relates all Contractor's Equipment, surplus material, rubbish and Temporary Works of every kind, and leave such part of the Site and Works clean and in a workmanlike condition to the satisfaction of the Employer so that the part of Works and Site are fit for immediate occupation. Provided that the Contractor may be permitted with specific approval of the Employer to retain on Site, until the end of the Defects Liability period, with such materials, Contractor's Equipment and Temporary Works as are required by him for the purpose of fulfilling his obligations during the Defects Liability period. However no labour shall be allowed to stay at site after the issue of taking over certificate.

5.25 Coordination and periodical site meetings

In addition to the weekly co-ordination meetings, periodical Review meetings between the Employer and the Contractor shall be held at least once in a fortnight to review progress and take remedial actions for adhering to the Programme. A Partner or a Senior Representative of the Contractor who enjoys the authority to take spot decisions shall attend such meetings.

The Contractor shall submit to the Employer four days in advance of the review meetings the progress made during the previous month and the programme for the current month. The aforesaid meetings may be held at closer intervals if the situation warrants.

5.26 Amenities for labour on site

The Contractor should ensure that the following minimum requirements as per the Labour Act should be made available at site at his cost.

(a) Proper and clean canteen for workers with name plate.

(b) Temporary urinals and toilets for male / female workers as applicable by National Building Code.

(c) Medical Room with a qualified First Aid in-charge, First Aid Box and a Bed should be kept in the Medical Room.

(d) children crèche with a trained Ayah and with a provision of Milk, Biscuits, Indoor Games, Drinking Water and with some sleeping space for the small children.

(e) The Labourers hutments should be provided with potable drinking water and central washing place.

(f) A Register for Fatal / Non-Fatal injuries is to be maintained at the site.

(g) The minimum wages of Maharashtra State as applicable to construction workers is to be displayed at the site.

5.27 Interference with traffic and adjoining properties

All operation necessary for execution and completion of the works and the remedying of any defects therein shall, so far as compliance with the requirements of the Contract permits, be carried on so as not to interfere unnecessarily or improperly with:

(a) the convenience of the public, or

(b) the access to, use and occupation of public or private roads, railways, footpaths and any other right of way to or of properties whether in the possession of the Employer or of any other person.

The Contractor shall indemnify the Employer in respect of all claims, proceedings, damages, costs, charges and expenses whatsoever arising out of, or in relation to, any such matters insofar as the Contractor is responsible therefore.

5.28 Unloading, inspection and storage of materials supplied by Employer

The Contractor shall promptly unload from the carriers all the materials and/or equipment covered under this Contract. It is the Contractor's sole responsibility to liaise with Employer and other related agencies and to inform the expected date and time of arrival of the carriers at site and ensure that his men and aids are available in time to unload the material and/or equipment and promptly release the carriers. Any demurrage charges incurred due to the delay in unloading of the material and/or equipment and releasing the carriers shall be charged to the Contractor's account. The Contractor shall plan in advance his requirements of jacks, cranes, sleepers, etc. required to unload the material and/or equipment promptly and efficiently.

The Contractor shall safely transport the material and/or equipment to the designated storage area and store the same in a systematic manner with tags for easy identification and retrieval. He shall also maintain all required stores records and furnish all required reports.

The Contractor shall also inform Employer forthwith regarding the repairs / replacement required towards the items damaged/lost in order to enable Employer to arrange for repairs / replacements well in time and avoid delays due to non-availability of equipment and parts.

The Contractor shall arrange for periodic inspection of material and/or equipment in his custody until taken over by Employer and shall carry out all protective and preservative measures required thereupon.

The Contractor shall also keep a check on the deliveries of the material and/or equipment covered in his scope of construction / erection and shall advise Employer well in advance regarding possible hold-ups in his work due to expected delays in delivery of equipment.

6.0 Staff, various laws etc.

6.1 Engagement of staff and labour

The Contractor shall, unless otherwise provided in the Contract, make his own arrangements for the engagement of all staff and labour, local or other and for their payment, housing, feeding and transport. No arrangements shall be made for housing colonies / labour camps etc. within the premises of the Employer. The Contractor shall employ labour in sufficient number to maintain the required rate of progress and of quality to ensure workmanship of the degree required by the Specifications and to the satisfaction of the Employer.

a). The Contractor shall function as a construction / erection organisation and provide adequate, courteous and competent labour (unskilled, semi-skilled and skilled), watchmen, supervisors, and engineers of all classes for the duration of the work to maintain the rate of construction / erection in accordance with the requirements of the Construction Program, and shall begin the work included in this Contract at such time as will ensure its completion as specified and shall complete the same, free of all liens and charges, at or before the time specified for completion. The Contractor shall make available qualified engineers for placing the equipment in operation and carrying out the necessary tests and totals. Conduct required of the Contractor's men are specified below.

b). It is important that the Contractor shall employ men known to be reliable and competent for the work in general and it shall be a requirement of this Contract that men used on special works shall be competent, well trained and trusted employees.

c). The Contractor shall furnish details of the qualifications and experience of his senior supervisors and engineers assigned to the work, including their experience in supervising construction / erection and commissioning of plant and equipment of comparable capacity. The Contractor shall be personally present or employ at least one competent representative (whose name shall have previously been communicated in writing to Employer) to supervise the construction / erection of the Works and carrying out of the work under this Contract. This representative shall have full technical capability and complete administrative and financial powers to expeditiously and efficiently execute the work under this Contract. The Contractor or his representative, or if more than one be employed, one of the representatives shall be present at the site at all times the work is in progress, and any written orders or instructions which Employer may give to the said representative of the Contractor, shall be deemed to have been given to the Contractor. The Contractor shall execute & maintain an office on or adjacent to the site of the work with conference room and staff toilet facility , and shall at all times keep in the said office a complete set of specifications, drawings and such other documents necessary and relevant to the Works and for inspection thereof. Employer shall normally communicate directly with the said representative at the site. In the event the Contractor is a Company or Corporation or a Partnership, then, this paragraph shall be interpreted to mean the attention of an Officer of the Company or Corporation or member of the Partnership.

d). The Contractor's representative at the site shall be posted and be available at site at all reasonable times. The service of the Contractor's representatives shall be made available during the progress of the work for such periods during the working days as Employer may require.

e). When the Contractor or his representative is not present on any part of the work where it may be desired to give directions in the event of emergencies, orders may be given by Employer and shall be received and obeyed by the supervisors or foremen who may have charge of the particular part of the work in reference to which orders are given. If requested to do so, Employer shall confirm such orders in writing. Any such instructions, directions or notices given by Employer shall be held to have been given to the Contractor.

f). The Contractor's employees shall after attending a site induction course be provided with identification badges showing employee's name, the Contractor's name, and project identification and employees detail with photograph. All employees will be required to wear these badges during the time they are at project site, where these would be plainly visible to Employer’s security staff. All workers, watchmen, supervisors, engineers and other staff at work site shall be provided with safety helmets and safety shoes by the Contractor and these shall be worn by them all the time they are at work site. The Contractor’s employees failing to do so shall, upon request of Employer, be summarily discharged. No employees of the Contractor shall be permitted to enter areas of construction operation unauthorised.

g). The Contractor shall furnish to Employer a daily labour force report showing by classifications, the number of employees engaged in the Works. The Contractor's employment records shall include any reasonable information as may be required by Employer.

h). The Contractor shall ensure that he pays his men regularly their wages, overtime and other compensations. The Contractor shall also furnish Employer at fortnightly intervals a certificate that he has paid all the dues to his workmen. In case such payment is not made regularly by the Contractor, Employer will be in its right but not obliged, to make such payments and deduct the same from any amounts due to the Contractor.

i). None of the Contractor's superintendents, supervisors, engineers or labour may be withdrawn from the work without due notice being given to Employer. Further, no such withdrawal shall be made if, in the opinion of Employer, it will jeopardise the required pace of progress and/or the successful completion of the Works.

j). Employer shall be at liberty to object to any representative or person or skilled, semiskilled or unskilled worker employed by the Contractor in the execution, or otherwise, of the Works, who misconducts himself, or be incompetent, or negligent or unsuitable and the Contractor shall remove the person so objected to, upon receipt of notice in writing from Employer requiring him to do so and shall immediately provide in his place a competent representative at his own expense. Such persons who had been removed from the site at the request of Employer shall not be again employed or allowed on the works without the prior permission of Employer

k). In connection with the performance of work under this contract, the Contractor shall agree not to discriminate because of race, religion, caste, creed or colour. It is also expected that the Contractor in his selection of personnel will give due regard to their ability to co-operate with Employer, its representatives and equipment supplier's construction / erection supervisors. Suggestions and recommendations made by Employer, its representatives and the equipment supplier's construction / erection supervisors relating to the work and co-ordination thereof are to be carefully and courteously considered.

6.2 Observance of various laws

The Contractor shall in respect of labour directly employed by him or indirectly employed through Subcontractors or through labour pieceworkers employed by him comply with or cause to be compiled with the provisions of the various Labour Laws and Rules and Regulations for the time being in force as applicable to them in regard to all matters provided therein including Contract Labour (Regulation and Abolition) Act 1970, Equal Remuneration Act, 1976, Factories Act, Minimum Wages Act, Provident Fund Regulations, Employees Provident Fund Act and Schemes made under the Act, Payment of Wages Act, 1936, Employees Liability Act, 1938, Workmen's Compensation Act, 1923, Industrial Disputes Act 1947 and Maternity Benefit Act and shall indemnify the Employer in respect of all claims that may be made against the Employer for non-compliance thereof by the Contractor.

Notwithstanding anything contained herein, the Employer may take such actions as may be necessary for compliance of the various laws, Rules and Regulations and recover the cost thereof from the Contractor.

6.3 Safety provisions

The Contractor shall at his own expense arrange for the safety provision and also provide all facilities in connection therewith in respect of labour directly employed by him or indirectly employed through Subcontractors, and shall indemnify the Employer in respect of all claims that may be made on the Employer for non compliance thereof by the Contractor / Subcontractors. In case the Contractor fails to make arrangements and provide necessary facilities as aforesaid, the Employer shall be at liberty to make arrangements and provide facilities as aforesaid and recover the costs incurred on that behalf from the Contractor.

Schedule of charges / fines for violation of various rules and regulations is given in the Clause 21.0 of this document.

6.4 Wage record

The Contractor shall maintain records of Wages and other remuneration paid to his Employees in such form as may be convenient and to the requirements of the Employer and the Labour Dept. of the Government and the same shall include the following particulars of each worker:

(a) Name, Worker's Number and Grade
(b) Rate of Daily or Monthly wage
(c) Nature of Work on which employed
(d) Total number of days worked during each wage period
(e) Total amount payable for the work during each wage period
(f) All deductions made from the wage with details in each case of the ground for which the deduction is made.
(g) Wage actually paid for each wage period.

The Contractor shall provide a Wage slip for each worker employed on the Works. The Wage Records and Wage Slips shall be preserved for at least 12 (Twelve) months after the last entry.

6.5 Inspection of wage record

The Contractor shall allow inspection of the aforesaid Wage Records and Wage slips at a convenient time and place after due notice is received, to the Employer or any other person authorised by him on his behalf. The Contractor shall extend full co-operation to the Inspecting officers of the Labour Department and ensure compliance with the requirements observed by the Inspecting Officers.

6.6 First aid facilities

The Contractor shall provide and maintain adequate first aid facilities on the Site to the approval of the Employer.

7.0 Quality of materials, plant and workmanship

All materials, Plant and workmanship shall be

(a) of the respective kinds described in the Contract and in accordance with the Employer's Instructions, and

(b) subjected from time to time to such tests as the Employer may require at the place of manufacture, fabrication or preparation, or on the site or at such other place or places as may be specified in the Contract, or at all or any of such places.

The Contractor shall provide all documents and other information necessary for testing and such assistance, labour, electricity, fuels, stores, apparatus and instruments as are normally required for examining, measuring and testing any materials or Plant and shall supply samples of materials, before incorporation in the Works, for testing as may be selected and required by the Employer. The Contractor shall furnish to the Employer all certificates, invoices, accounts, Vouchers, etc., to prove that the materials are of the quality specified.

7.1 Secrecy of publicity / intellectual property rights

The Contractor shall not disclose any information furnished by Employer, its Project Manager, Architects and other representatives, nor any drawings, reports and other information prepared by the Contractor for the project, without the prior written approval of Employer except in so far as disclosure is necessary for the performance of the Contractor's work and services under this Contract.

The Contractor shall not at any time take or permit to be taken any photographs of the Works for use in any publicity or advertising or use the Works or any part thereof in any publicity or advertisement nor shall the Contractor impart to any publication, journal or newspaper or to any radio or television programme any information regarding the Works unless he shall first have obtained a written permission of Employer

This Contract documents, details, levels or other information supplied to the contractor under this contract shall not be used by him for any purpose other than this contract, and the contractor shall, if so requested by Employer at Practical completion of the Works, forthwith return to Employer the same.

Copyright in all drawings, plans and other documents of any nature whatsoever prepared or provided either by the Contractor for or in connection with the Project and in any designs contained in them (“the material”) shall remain vested in the Contractor but the Contractor hereby grants to Employer an irrevocable, royalty-free, non exclusive license to use and to reproduce all the Material and the designs contained in it for any purpose relating to the project including, but without limitation, the construction, completion, reconstruction, reinstatement, modification, extension, maintenance, repair, letting, sale advertisement or the use of the project. The Contractor shall not be liable for any use of the material for any purpose other than that for which the same was prepared or provided. The Contractor does not acquire any intellectual property rights to the designs, drawings, or other materials, which Employer may provide to the Contractor either from already completed Phase I of the project, or from elsewhere.

7.2 Materials / goods and workmanship

Materials / goods and workmanship to conform to description, specifications, inspection and testing. All materials, goods and workmanship shall be of the respective kinds and standards

described in this Contract documents or in any drawings, details, specifications or instruction issued to the Contractor under these conditions, including the Project Manager's Instructions. If any material/equipment, goods or workmanship of the kind and standards in the Contractors design shall after the date of this Contract not be procurable the Contractor shall give written notice to Employer proposing an alternative and shall obtain the prior written consent of Employer as to the use of any alternative. The consent of Employer shall not be taken to relieve the Contractor of his obligation under this contract and any alternative agreed shall not necessarily give rise to any variation to this Contract Sum.

The Contractor shall upon the request of Employer furnish it with test Certificates and such other documents as may be necessary to prove that the material/equipment and goods comply with the provisions mentioned in above paragraph.

Employer may issue instructions requiring the contractor to open up for inspection of any work covered up or to arrange for or to carry out any test of material/equipment or goods (whether or not already incorporated in the works) or of any executed work, and the cost of such opening up or testing (together with cost of making good in consequence thereof) shall be added to this Contract sum unless provided in this Contract documents or unless the inspection or testing shows that the same are not in accordance with this contract.

Employer may issue instructions in regard to the taking down and/ or removal from the site or re-execution or repair or making good of any work, material, equipment or goods which are not in accordance with this contract (notwithstanding any previous inspection or test thereof).

7.3 Samples

All samples shall be supplied by the Contractor at his own cost if the supply thereof is clearly intended by or provided for in the Contract. Samples shall be submitted for approval at least 45 (forty five) days in advance of the date, the particular work involving the use of the materials for which samples are submitted is scheduled to begin.

The works shall be in accordance with the approved samples. Where special brands or makes are specified, they are mentioned to indicate the standard of quality of the material. Others of equal quality may be permitted by the Employer. Adjustment in prices, if any, shall be decided by the Employer.

7.4 Costs of tests

The cost of making any test shall be borne by the Contractor if such test is clearly intended by or provided for in the Contract, or particularised in the Contract (in cases only of a test under load or of a test to ascertain whether the design of any finished or partially finished work is appropriate for the purposes which it was intended to fulfil in sufficient detail to enable the Contractor to price or allow for the same in his Tender).

The Contractor shall carry out tests specified in the Technical Specifications (at his cost and the quoted rates are deemed to be included for) on materials, completed items of works, at site, laboratory, test house etc.

7.5 Rejection

The Employer determines that the materials or plant are defective or otherwise not in accordance with the Contract, he may reject the materials or Plant and shall notify the Contractor thereof immediately. The Contractor shall then promptly make good the defect or ensure that rejected materials or Plant comply with the Contract. If the Employer so requests, the tests, of rejected materials or Plant shall be made or repeated under the same terms and conditions. All costs incurred by the Employer by the repetition of the tests shall be recoverable from the Contractor by the Employer and may be deducted from any monies due or to become due to the Contractor.

7.6 Examination of work before covering up

No part of the Works shall be covered up or put out of view without the approval of the Employer and the Contractor shall afford full opportunity for the Employer to examine and measure any such part of the Works which is about to be covered unto or put out of view and to examine foundations before any part of the Works is placed thereon. The Contractor shall give reasonable notice to the Employer whenever any such part of the Works or foundations is or are ready or about to be ready for examination and the Employer shall, without unreasonable delay, unless he considers it unnecessary and advises the Contractor accordingly, attend for the purpose of

examining and measuring such part of the Works or of examining such foundations. Where the Works involve more than one stage / process, the Contractor shall give notice when each stage / process is ready to enable inspection by the Employer's Representative.

7.7 Removal of improper works, materials or plant

The Employer shall have authority to issue instructions from time to time for:

(a) the removal from the Site, within such time or times as may be specified in the instruction, of any materials or Plant which, in the opinion of the Employer, are not in accordance with the Contract.

(b) the substitution of proper and suitable materials or Plant, and

(c) the removal and proper re-execution, not withstanding any previous test thereof or interim payment thereof, of any work which, in respect of materials, plant or workmanship, or design by the Contractor or for which he is responsible, is not, in the opinion of the Employer, in accordance with the Contract.

7.8 Inspection of operations

The Employer, his associate Consultants and any person authorised by him, shall at all reasonable times have access to Site and to all workshops and places where materials or Plant are being manufactured, fabricated or prepared for the Works and the Contractor shall afford every facility for and every assistance in obtaining the right to such access.

7.9 Inspection and testing

Employer or any person appointed by them shall have access and right to inspect the Works, or any part thereof, at all times and places during the progress of the Works. The inspection and supervision is for the purpose of assuring Employer that the drawings and specifications are being properly executed and while Employer and/or their representatives will extend to the Contractor all desired assistance in interpreting the plans and specifications, such assistance shall not relieve the Contractor of any responsibility for the work. The Contractor without delay shall correct any work, which proves faulty. The fact that Employer and/or their representatives have not pointed out faulty work or work which is not in accordance with plans and specifications shall not relieve the Contractor from correcting such work as subsequently directed by Employer and/or their representatives without additional compensation.

If and when finished work is required to be taken down for the purpose of inspection, the Contractor shall bear all the expense incidental thereto in the event that the said work is found to be defective. Employer shall pay the cost incidental thereto in the event that the work inspected is found to be in accordance with the specifications. In the latter case, the replacing of the covering or the making good of any of the parts removed shall be paid for by Employer at the contracted prices for the class of work. However, no extension of time shall be given for completion of works on this account. If the Contractor fails to repair any defective work or replace any defective material and/or equipment, Employer may cause the same to be repaired or replaced as the case may be and the expenses thereof shall be deducted from the amounts due to the Contractor.

Employer, its representatives and employees shall at all times have free access to the works and/or to the workshops, factories or other places where materials and/or equipment are being prepared or constructed for the Works and also to any place where the materials and/or equipment are lying or from where they are being obtained, and the Contractor shall give every facility to Employer and its representatives for inspection and examination and test of the materials and/or equipment and workmanship even to the extent of discontinuing portions of the work temporarily, or of uncovering or taking down portions of finished work.

The cost of inspection and all testing will be borne by the Contractor, which will be carried out by the Contractor or by an independent inspection company. Inspection and testing will be required for items as determined by the Project Manager as being appropriate to the particular package works.

Inspection and test results are for the Project Managers purposes and copies of all tests / the Contractor will provide inspections results. The contractor shall not rely solely on this information relative to his own quality control measures, and it shall not relieve the contractor from his responsibility under this Contract for the proper conduct of the work and for conducting whatever tests that is necessary to be certain that the work is performed in accordance with this Contract.

If in the opinion of the Project Managers it is not expedient to correct defective work or work not performed in accordance with these Contract Documents, Employer's Representative may deduct from this Contract sum the difference in value between the work as performed and that called for by these Contract Documents, the amount of which will be determined in the first instance by the Project Manager. The Contractor will be held responsible for delays caused by rejected work.

The Contractor shall furnish mock-up / samples as specified in the scope of work. The mock-up / sample shall be the representative actual installation including workmanship, backing material, adjacent construction, finishes and colours. Unless otherwise noted, mock-up / sample may become parts of the finished installation on their being approved by Employer.

7.10 Protection to building, works, plant & equipment

During construction / erection of the Works, Employer may continue to operate existing premises in and around the vicinity of the project site. The Contractor shall protect all existing plant, structures, equipment and facilities against damage during his operations.

The Contractor shall perform his work in a manner that in no way endangers the operation of the existing premises and other plants of Employer in and around the vicinity of the Site.

Employer shall not be responsible or held liable for any damage to person or property consequent upon the use, misuse or failure of any construction tools and equipment used by the Contractor or any of his Subcontractors, even though such construction tools and equipment may be furnished, rented or loaned to the Contractor or any of his Subcontractors. The acceptance and/or use of any such construction tools and equipment by the Contractor or his Subcontractors shall be construed to mean that the Contractor accepts all responsibility for and agrees to indemnify and save harmless Employer from any and all claims for said damages resulting from said use, misuse or failure of such construction tools and equipment.

The Contractor and his Subcontractors shall, till the completion of their Works, be responsible for the protection of the works, which have been completed by other Contractors. Necessary care shall be taken by the Contractor to see that no damage to the same is caused during the course of execution of the Works.

All other work completed or in progress as well as machinery and equipment, which are liable, to be damaged by the Contractor shall protect the Contractor's work and such protection shall remain and be maintained until Employer directs its removal**.**

The Contractor shall effectively protect all the Works from action of weather and from damages or defacement and shall cover the finished parts where required for their thorough protection. Face work shall be perfectly clean and free from defects.

The Works shall be carried out up to completion without damage to any work and property adjacent to the area of work, without interference with the operation of the existing machines or equipment.

7.11 Independent inspection

If the Employer so desires, he may delegates inspection and testing of materials or Plant to an independent inspector.

8.0 Delays and suspension of works

8.1 Delays and extension of time

8.1.1 Suspension of work

The Contractor shall, on the instructions of the Employer, suspend the progress of the Works or any part thereof for such time and in such manner as the Employer may consider necessary for whatever may be the reasons and shall, during such suspension, properly protect and secure the Works or such part thereof so far as is necessary in the opinion of the Employer.

8.1.2 Delays and extension of time

Also the Employer shall grant a fair and reasonable extension to the Contractor for completion of the work if,

(i) by force majeure or

(ii) by reason of any exceptionally inclement weather or,

(iii) by reason of proceedings taken or threatened by or dispute with adjoining or neighbours or public authorities arising otherwise than through the Contractor.

(iv) by the works or delays of other Contractors or tradesman engaged or nominated by the Employer and not referred to in the schedule of quantities or in the contract document.

(v) by reason of civil commotion, local combination of workmen or strike or lookout affecting any of the building trades or,

(vi) in consequence of the Contractor not having received in due time the necessary instructions from the Employer for which he shall have specifically applied for in writing.

In such cases with a written notice thereat to the Employer, the Contractor shall nevertheless constantly use his endeavours to prevent delay and shall do all that may reasonable be required to the satisfaction of the Employer to proceed with work.

The Contractor shall not be entitled to any financial compensation or compensation in any form in respect of any extension of time granted by the Employer.

8.2 Determination of extension of time following suspension of works

Where, pursuant to Clauses 8.1.1 & 8.1.2 this Clause applies the Employer shall determine any extension of time to which the Contractor is entitled.

8.3 Resumption of works after the period of suspension

The Contractor shall resume the works immediately after the receipt of order to resume works but under any circumstances not later than 10 (Ten) days from the date of receipt of such order.

However, the Contractor will not be entitled for compensation in any form due to suspension of works.

9.0 Commencement and completion

9.1 Commencement of works

The Contractor shall mobilise his Plant, Equipment and Labour immediately after issue of Acceptance Letter by Employer and commence work. Date of Commencement of work will be reckoned stipulated in the Annexure I (Contract Provisions) of The Contract Agreement.

9.2 Time of completion

The whole of the works, and if applicable, any section required to be completed within a particular time as stated in the Annexure I (Contract Provisions) to The Contract Agreement, shall be completed, in accordance with the provisions of Clause 9.5 within the time stated in the Annexure I (Contract Provisions) of The Contract Agreement for the whole of the works or the section (as the case may be), calculated from the Commencement date, or such extended time as may be allowed by the Employer.

9.3 Restriction on working hours

Subject to any provision to the contrary contained in the Contract, none of the Works shall, save as hereinafter provided, be carried on during the night or on locally recognised days of rest without the consent of the Employer, except when work is unavoidable or absolutely necessary for the saving of life or property or for the safety of the Works, in which case the Contractor shall immediately advise the Employer. Provided that the provisions of the Clause shall not be applicable in the case of any work which it is customary to carry out by multiple shifts. However in such multiple shift works also the Contractor shall ensure that there is no disturbance to the surrounding settlements / habitats in terms of traffic, noise, pollution etc. and that all authority

approvals and permissions are taken. The Contractor shall indemnify the Employer in all regards of this matter.

9.4 Rate of progress

If for any reason, rate of progress of the Works or any section is at any time, in the opinion of the Employer, is too slow to comply with the Time for Completion, the Employer shall so notify the Contractor who shall thereupon take such steps as are necessary, subject to the consent of the Employer, to expedite progress so as to comply with the Time for Completion. The Contractor shall not be entitled to any additional payment for taking such steps. If, as a result of any notice given by the Employer under this Clause, the Contractor considers that it is necessary to do any work at night or on locally recognised days of rest, he shall be entitled to seek the consent of the Employer so to do with the proviso that any additional lighting required shall be provided by the Contractor at his expense. Provided that if any steps taken by the Contractor in meeting his obligations under this Clause, involve the Employer in additional supervision costs, such costs shall be recoverable from the Contractor by the Employer, and may be deducted by the Employer from any monies due or to become due to the Contractor. The Contractor shall ensure minimum noise and disturbance during night working and shall indemnify the Employer from and against all claims, demands, proceedings, costs, charges and expenses whatsoever in regard or in relation to such liability.

9.5 Liquidated damages for delay

If the Contractor fails to comply with the Time for Completion in accordance with Clause 9.6, for the whole of the Works or, if applicable, any Section within the relevant time prescribed by Clause 9.2, then the Contractor shall pay to the Employer the relevant sum stated in the Annexure I (Contract Provisions) to The Contract Agreement as liquidated damages for such default representing the Employer's genuine pre-estimate of the damages likely to be suffered by him without reference to actual loss and not as a penalty (which sum shall be the only monies due from the Contractor for such default) for every day which shall elapse between the relevant Time for Completion and the date stated in a Taking-over Certificate of the whole of the Works or the relevant Section, subject to the applicable limit stated in the Annexure I (Contract Provisions) to The Contract Agreement. The Employer may, without prejudice to any other method of recovery, deduct the amount of such damages from any monies due or to become due to the Contractor. The payment or deduction of such damages shall not relieve the Contractor from his obligation to complete the Works, or from any other of his obligations and liabilities under the Contract nor prejudice exercising any other right or remedy of the Employer available under the Contract.

9.6 Taking over certificate

When the whole of the Works have been substantially completed and have satisfactorily passed any Tests on Completion prescribed by the Contract, the Contractor may give a notice to that effect to the Employer, accompanied by a written undertaking to finish with due expedition any outstanding work during the Defects Liability Period. Such notice and undertaking shall be deemed to be a request by the Contractor for the Employer to issue a Taking-over Certificate in respect of the Works. The Employer shall, within 21 (Twenty One) days of the date of delivery of such notice, issue a Taking-over Certificate, stating the date on which, in his opinion, the Works were substantially completed in accordance with the Contract, or give instructions in writing to the Contractor specifying all the work which, in the Employer's opinion, is required to be done by the Contractor before the issue of such Certificate. The Employer shall also notify the Contractor of any defects in the Works affecting substantial completion that may appear after such instructions and before completion of the Works specified therein. The Contractor shall be entitled to receive such Taking-over Certificate within 21 (Twenty One) days of completion, to the satisfaction of the Employer, of the Works so specified and remedying any defects so notified.

10.0 Defects and liability

10.1 Defects liability period

Defects Liability Period shall be 12 (Twelve) months from date of virtual completion and issue of Taking over Certificate.

10.2 Defects liability period of special works

Contractor shall give necessary guarantee for the performance and maintenance of such specialist works such anti-termite treatment, waterproofing treatment, etc., on a format approved by the Employer before commencement of such specialist works.

10.3 Contractor's failure to carry out instructions

In case of default on the part of the Contractor in carrying out such instruction within a reasonable time, the Employer shall be entitled to employ and pay other agency / persons to carry out the same work which, the Contractor was liable to do at his own cost under the Contract, then all costs consequent thereon or incidental thereto shall be recoverable from the Contractor by the Employer, and may be deducted by the Employer from any monies due or to become due to the Contractor and the Employer shall notify the Contractor accordingly, and the balance shall be paid by the Contractor within 30 (Thirty) days of demand. The Employer shall also have the option, to retain an amount equal to the anticipated cost of execution of all such work of amendment, modification and remedying defects together with incidental charges. The fact that Works had been passed or payments had been made for the Works which was defective, imperfect and not in accordance with the Contract shall not be a plea for delaying the aforesaid work of amendment, modification and remedying defects.

10.4 Contractor to search

If any defect, shrinkage or other fault in the Works appears at any time prior to the end of the Defects Liability Period, the Employer may instruct the Contractor, to search for the cause thereof. If such defect, shrinkage or other fault is one for which the Contractor is liable, the cost of the Work carried out in searching as aforesaid shall be borne by the Contractor and he shall in such case remedy such defect, shrinkage, damages for other works due to search or other fault at his own cost in accordance with the provisions of Clauses 10.1 to 10.3.

11.0 Variations

11.1 Variations – definition

The Employer shall make any variations of the form, quality or quantity of the works or any part thereof that may, in his opinion be necessary and for that purpose, or if for any other reason it shall in his opinion be appropriate, he shall have the authority to instruct the Contractor to do and the Contractor shall do any of the following, provided however, that no work that radically changes the original nature and scope of the Contract shall be ordered as a variation.

a). increase or decrease the quantity of any work included in the Contract.
b). omit any such work
c). change the character or quality or kind of any such work.
d). change the levels, lines, position and dimensions of any part of the Works.
e). execute additional work of any kind necessary for the completion of the Works,
f). change any specified sequence or timing of construction of any part of the Works.

No such variation shall in any way vitiate or invalidate the Contract, but the effect, if any, of all such variations shall be valued in accordance with Clauses 11.3 & 11.4. Provided that where the issue of an instruction to vary the Works is necessitated by some default of or breach of contract by the Contractor or for which he is responsible, any additional cost attributable to such default shall be borne by the Contractor.

It is brought to the notice of the Contractor that there may be substantial variation either plus or minus in the quantities of the items of work. Contractor shall take due consideration of this. No claims for loss, compensation or escalation on the grounds of increase / decrease in the quantities indicated in the tender schedule of quantities will be entertained under any circumstances nor will the Contractor be entitled to prefer any claims whatsoever on these grounds.

11.2 Instructions for variations

The Contractor shall not make any such variation without an instruction of the Employer. Provided that no instruction shall be required for increase or decrease in the quantity of any work where such increase or decrease is not the result of an instruction given under this Clause, but is the result of the quantities exceeding or being less than those stated in the Bill of Quantities / Schedule of Works.

11.3 Valuation of variations

All variations referred to in Clauses 11.1 & 11.2 and any additions to the Contract which are required to be determined in accordance with Clause 11.4 (for the purposes of this Clause referred to as 'varied work') shall be valued at the rates and prices set out in the Contract if the same shall be applicable. If the Contract does not contain any rates or prices applicable to the varied work, the rates and prices in the Contract shall be used as the basis for valuation so far as may be reasonable, if the varied item can be derived from a quoted item. If the varied item cannot be derived from any of the quoted items, the rates shall be based on market rates of materials delivered at Site plus reasonable wastage plus labour plus 10% (Ten percent) to cover overheads and profits. Until such time as rates or prices are agreed or fixed by the Employer, provisional rates or prices to enable on-account payment to be included in certificates issued in accordance with Clause 14.1 and the Contractor shall not suspend or delay execution of items pending finalisation of rates or prices by the Employer and the Contractor cannot claim any extra amount / rate due to non-finalisation of rates in time.

11.4 Documents required for preparation of rates based on market rates

The Contractor shall furnish to the Employer such quotations, receipts or other vouchers, wage records as may be necessary for fixation of rates for variation based on market rates and also to prove the amounts paid. The Contractor shall submit to the Employer quotations of materials for his approval. The Contractor, shall during the continuance of such work, on instructions of the Employer, deliver to the Employer's representative each day an exact list of names, occupation and time of all workmen employed in duplicate and a statement also in duplicate, showing the description and quantity of all materials and Contractor's equipment used thereon or therefore for his verification.

At the end of each month, the Contractor shall deliver to the Employer a priced statement of the labour, materials and Contractor's equipment required for execution of such work and the Employer shall have the right to review the rates for such work on verification of the details submitted by the Contractor.

11.5 Measurement of items involving variation

Measurement of items involved in variations shall also be carried out simultaneously with the execution of work.

12.0 Temporary works and materials

12.1 Contractors equipment, temporary works and materials

All Contractor's Equipment, Temporary Works and materials provided by the Contractor shall, when brought on to the Site, be deemed to be exclusively intended for the execution of the Works and deemed to be the property of the Employer and the Contractor shall not remove the same or any part thereof except for the purpose of moving it from one part of the Site to another, without the consent of the Employer, which shall not be unreasonably withheld, where the equipment are not required for the purpose of completion of the Works. Provided that consent shall not be required for vehicles engaged in transporting any staff, labour, Contractor's equipment Temporary Works, Plant or materials to or from the Site.

The Contractor is deemed to have visited the site and inspected the working conditions. The Contractor is also deemed to have studied the general project to understand various scenarios that would develop during the construction. No time and cost escalation claims towards current site conditions or those developing during the ongoing construction would be allowed.

12.2 Construction power, lighting and water

The contractor, at his own expense, organise construction power and water for his works including supply and distribution networks.

The technical aspects of these items such as locations of water storage tanks, pumps, temporary pipelines, locations of electrical boards, cabling etc. shall be done with high standards of safety and to the satisfaction of the Employer.

All necessary authorities approvals, certifications, compliances shall be ensured by the Contractor. The Employer shall be indemnified by the Contractor against all issues arising from non compliance of such aspects.

Construction cabling shall be run only overhead and shall be adequately supported by masts to avoid sagging. Only insulated cabling shall be used.

The panel boards provided by the Contractor shall be lockable and shall have proper industrial plug & socket units to draw power to welding sets, hand tools, lighting etc.

Construction power gensets installed by the Contractor shall conform to all applicable statutes and should be certified by relevant competent authorities.

The Contractor shall organise adequate lighting in various areas used by his teams for construction or for materials movement. Weatherproof fittings / fixtures shall be used by the Contractor.

All equipment / systems used for construction power, lighting and water should be of high quality, properly inspected and maintained and with necessary authority certificates and approvals.

12.3 Employer not responsible for damage

The Employer shall not at any time be liable for the loss of or damage to any of the said Contractor's Equipment and Temporary Works due to any reason including those mentioned in Clause 5.12.

12.4 Storage of materials

The Contractor shall provide and maintain weatherproof sheds for storage and working areas for materials, mixing of concrete, casting yards, etc. both for his own use and the Employer and clear away same on completion.

12.5 Making good of damages to materials / plant / building / equipment etc.

The Contractor shall make good at his own cost all damages to building works, finishes, telephone, telegraph and power cables, sewers, water or other pipes at the sole discretion of the Authority or Company responsible for the same. The said Authority or Company may elect to make good the damage themselves or request the Contractor to do so. The cost incurred in so doing shall be paid by the Contractor to the Authority or Company on demand.

12.6 Item rate contracts

Measurement of items ordered and executed shall be jointly recorded which shall be the basis for payment.

13.0 Measurements

13.1 Method of measurements

The items shall be measured, notwithstanding any general or local custom, according to the mode of measurements stated in the particular specifications. Where no specific method is stated in the Particular Technical Specifications/BOQ, the measurements shall be according to the Indian Standard Method of Measurements, including revisions / amendments issued up to 30 (Thirty) days prior to the date of receipt of tenders, as published by the Bureau of Indian Standards. In case no standard for measurement is available, measurements shall be taken net.

13.2 Final measurements

Final measurements shall be taken after issue of Taking-Over-Certificate.

13.3 Measurements before covering up

Measurements shall be recorded before covering up.

14.0 Certificates

14.1 Correction of certificates

The Employer may by any interim certificate make any correction or modification in any previous certificate which shall have been issued by him and shall have authority, if any work is not being carried out to his satisfaction, to omit or reduce the value of such work in any interim certificate and interim certificate shall be considered as only advance against final payment and not as payments for works actually done, completed and approved and shall not preclude the requiring of bad, unsound, imperfect or unskilled work or materials to be removed and taken away and thereafter reconstructed with proper materials and workmanship.

14.2 Final certificate

Within 90 (Ninety) days after receipt of the Final Statement, and the written discharge, the Employer shall issue a Final Certificate stating

a). the Final Sum, which, in the opinion of the Employer, is finally due under the Contract, and
b). after giving credit to the Employer for all amounts previously paid by the Employer and
c). for all sums to which the Employer is entitled under the Contract, the balance, if any, due from the Employer as the case may be.
d). the amount of liquidated damages that stands recoverable under Clause 9.5.
e). the amount to be withheld for rectification of defects and incidental charges thereon in accordance with Clauses 10.1 to 10.4.
f). provided however, that the Employer shall issue a Final Certificate only after the Contractor furnishes `As Built' drawings and various documents and completed various trainings as mentioned in Clause 19 and its Clauses.

14.3 Method of payment

All payments to Contractor shall be made by means of crossed cheque only on any bank in which the Employer has an account.

14.4 Statutory deductions

Statutory deductions at source will be done as stipulated by Central and State government.

15.0 Default

15.1 Default of contractor

If the Contractor is deemed by law unable to pay his debts as they fall due, or enters into voluntary or involuntary bankruptcy, liquidation or dissolution (other than a voluntary liquidation for the purposes of amalgamation or reconstruction), or becomes insolvent, or makes an arrangement with, or assignments in favour of, his creditors, or agrees to carry out the Contract under a committee of inspection of his creditors, or if a receiver, administrator, trustee or liquidator is appointed over any substantial part of his assets, or if under any law or regulation relating to reorganisation, arrangement or readjustment of debts proceedings are commenced against the Contractor or resolutions passed in connection with dissolution or liquidation or if any steps are taken to enforce any security interest over a substantial part of the assets of the Contractor, or if any act is done or event occurs with respect to the Contractor or his assets which, under any applicable law has a substantially similar effect to any of the foregoing acts or events, or has an execution levied on his goods, or if the Employer certified, that, in his opinion, the Contractor.

a). has repudiated the Contract, or
b). without reasonable excuse has failed to commence the Works in accordance with Clause 9.1 or
c). despite previous warning from the Employer, in writing, is otherwise persistently or flagrantly neglecting to comply with any of his obligations under the Contract, or
d). has failed time and again to follow instructions issued by Employer and not given immediate explanation for delays, agreed in writing by the Employer, or
e). has contravened Clause 3.0.

then the Employer may, after giving 14 (Fourteen) days' notice to the Contractor, and upon the Contractor not taking any action for remedying the default when such action is possible in the opinion of the Employer, and notwithstanding any previous waiver, enter upon the Site and the Works and terminate the employment of the Contractor without thereby releasing the Contractor from any of his obligations or liabilities under the Contract, or affecting the rights and authorities conferred on the Employer or his representative by the Contract, any may himself complete the Works or may employ any other Contractor to complete the Works.

The Employer or such other Contractor may use for such completion so much of the Contractor's Equipment, Temporary Works and materials as he or they may think proper. The Contractor shall not in any way interrupt or do any act, matter, or thing to prevent or hinder the Employer or any other Contractor to complete the Works or for use of materials, Contractor's Equipment and Temporary Works.

15.2 Foreclosure of contract in full or in part

If at any time after commencement of work, the Employer decides to abandon or reduce the scope of the works to be carried out, the Employer shall give notice in writing to that effect to the Contractor and the Contractor shall have no claim of whatsoever nature consequent to abandoning and thus resulting in foreclosure of the whole or part of works. Upon such intimation this contract shall stand cancelled and terminated.

15.3 Payment after termination

If the Employer terminates the Contractor's employment under this Clause, he shall not be liable to pay to the Contractor any further amount (including damages) in respect of the Contractor until the expiration of the Defects Liability Period and thereafter until the costs of execution, completion and remedying of any defects, damages for delay in completion (if any) and all other expenses incurred by the Employer have been ascertained and the amount thereof certified by the Employer. The Contractor shall then be entitled to receive only such sum (if any) as the Employer may certify would have been payable to him upon due completion by him after deducting the said amount. If such amount exceeds the sum which would have been payable to the Contractor on due completion by him, then the Contractor shall, upon demand, pay to the Employer the amount of such excess and it shall be deemed a debt due by the Contractor to the Employer and shall be recoverable accordingly. The Employer shall have the option to sell the Contractor's equipment, Temporary works, unused materials and other assets of the Contractor at site and adjust the proceeds in satisfaction of the demand made on the Contractor.

15.4 Notice of claims

Notwithstanding any other provision of the Contract, if the Contractor intends to claim any additional payment pursuant to any Clause / Clause of these Conditions or otherwise, he shall give notice of his intention to the Employer, within 28 days after the event giving rise to the claim has first arisen. Failure to give such notice shall be considered as voluntary withdrawal of claim by the Contractor and consequently extinguished.

15.5 Termination of contractor for death

If the Contractor is an individual or the proprietor of a firm is an individual or if a Partner of a Partnership firm dies, unless the Employer is satisfied that the legal successor of the individual or the proprietor or surviving partner(s) are capable of carrying out and completing the Contractor satisfactorily, the Employer shall have the option to terminate the Contract without compensation to the Contractor.

15.6 Urgent remedial works

If, any reason of any accident, or failure, or other event occurring to, in or in connection with the works, or any part thereof, either during the execution of the Works, or during the Defects Liability Period, any remedial or other work is, in the opinion of the Employer urgently necessary for the safety of the Works and the Contractor is unable or unwilling at once to do such work, the Employer shall be entitled to employ and pay other persons to carry out such works as the Employer may consider necessary. If the work or repair so done by the Employer is work which, the Contractor was liable to do at his own cost under the Contract, the all costs consequent thereon or incidental thereto shall be recoverable from the Contractor by the Employer, and may be deducted by the Employer from any monies due or to become due to the Contractor.

15.7 Settlement of disputes - Arbitration

All dispute and differences of any kind whatever, arising out of or in connection with the contract, or carrying out of the works,(whether during the progress of the works or after their completion and whether before or after the termination, abandonment or breach of the contract) shall be referred to and settled by the Employer who shall state his decision in writing. Such decision may be in the form of a Final Certificate or otherwise. The decisions of the Employer with respect to any of the excepted matters shall be final, and without appeal as stated in the preceding clause.

But if the Contractor be dissatisfied with the decision of the Employer on any matter, question or dispute of any kind (except any of the excepted matters) or as to the withholding by the Employer of any certificate to which the Contractor may claim to be entitled, then and in any such case, either party (the Employer or the Contractor) may within twenty-eight days after receiving notice of such decision, give a written notice to the other party, requiring that such matter in dispute be arbitrated upon.

Such written notice shall specify the matters which are in dispute and no other, shall be, and is hereby referred to the arbitration. The Arbitrator or Arbitrators shall be appointed by both the parties, or in case of disagreement as to the appointment of single Arbitrator, one to be appointed by each party. Before taking upon themselves the burden of reference however, the two Arbitrators shall appoint an Umpire.

Arbitrator, the Arbitrators or Umpire shall have power to open up, review and revise any certificate, opinion, decision, requisition or notice, save in regard to the `Excepted matters' referred to in the preceding Clause, and to determine all matters in dispute which shall be submitted to him or them of which notice shall have been given as aforesaid.

Upon every or any such reference, the cost of the reference and Award shall be in the discretion of the Arbitrator or the Arbitrator or the Umpire, as the case may be, who may determine the amount thereof; and shall direct by whom and to whom and in what manner the same shall be borne and paid. The award of the Arbitrator or Arbitrators or the Umpire as the case may be shall be final and binding on the parties. It is agreed that the Contractor shall not delay the works by reason of any such matters, question or dispute being referred to Arbitration, but shall proceed with the work with all due diligence and shall, until the decision of the Arbitrator or Arbitrators of the Umpire by given abide by the decision of the Employer and no award of the Arbitrator or the Arbitrators or the Umpire, shall relieve the Contractor of his obligations to adhere strictly to the Employer's instruction with regard to the actual carrying out of the works. The Employer and the Contractor hereby also agree, that Arbitration under this Clause shall be a condition precedent to any right of action under the contract.

15.8 Possession of site

The Employer will with the notice to commence the works given to the Contractor, the Possession of the site and such access that is to be provided by the Employer as may be required to enable the Contractor to commence and proceed with the execution of the works.

16.0 Drawings

16.1 Issue of drawings & specifications

For designs provided by the Employer, two set of drawings approved for construction will be issued to the Contractor progressively during the contract period and the Contractor shall arrange for the execution of the works and the procurement of materials accordingly. The Contractor shall give adequate notice in writing to the Employer of any further drawings or specifications that may be required for the execution of the works or otherwise under the contract. Additional drawings/specifications will be issued to him on payment.

16.2 Copies of drawings to be kept at site

One copy of the drawings furnished to the Contractor as aforesaid shall be kept at the site and the same shall at all reasonable times be available for inspection and use by the Employer or his representative and by any other person authorised by the Employer in writing.

16.3 Issue of further drawings and instructions

The Employer shall have full power and authority to supply to the Contractor from time to time through his representative, during the progress of the works such further drawings and instructions as shall be necessary for the purpose of proper and adequate execution and maintenance of the works and the Contractor shall carryout and be bound by the same.

16.4 Ownership of drawings

All drawings supplied to the Contractor are deemed to be the property of the Employer. The Contractor agrees both on behalf of himself and his employees, and Subcontractors, whether

during or after completion of the contract not to divulge or use, except for the purpose of this contract, any information contained in the drawings.

16.5 Execution as per drawings

The Contractor must not vary or deviate from the drawings in any respect while executing the work or executing any extra work of any kind whatsoever unless authorised by the Employer.

16.6 Plans and drawings to be submitted by the contractor

The Contractor shall submit the following information in triplicate to Employer for approval within the time stipulated each item below: -

A general tentative layout plan of construction plant and equipments for the execution of work within "7 days" from the date of receipt of work order.

Drawings or prints showing the location of major plants and other facilities which he proposes to put up at the site, including any changes in the general layout, at least "7 days" prior to the commencement of the respective work.

Layout and details of temporary works that the Contractor wants to carry out to fulfil his obligation under the contract, within 7 days from the date of the work order.

Within "7 days" the Employer will give their approval/comments sufficient to proceed with the work or objections/instructions to the Contractor based on which the drawings shall be revised and submitted again for approval by the Contractor.

All these plans and drawings submitted by the Contractor and approved by the Employer shall become part of the contract.

17.0 Reports by Contractor

a. The Contractor shall file daily category-wise labour return. The report shall indicate scheduled requirement against actual strength.
b. The Contractor shall prepare weekly reports of planned and actual progress of work and subsequent week's scheduled work. These will also include material procurement status. These reports shall be submitted to employer and shall be reviewed in weekly co-ordination meeting.
c. The Contractor shall submit monthly report along with monthly bills.
d. Further progress charts and schedules shall be prepared by the Contractor as directed by the employer.
e. The Contractor shall submit re-conciliation statement of all the materials supplied by the Employer, along with every running bill.
f. Concrete pour cards.
g. Method statement of all activities which the Employer desires, and any report called for by the Employer's representative based on project requirement.
h. Installation, commissioning and testing reports for all mechanical and electrical equipment, safety automation etc. These shall include but not limited to dry runs / no load test runs, commissioning trials, full load trials etc.

18.0 Retention

18.1 Retention money

In addition to the security deposit by way of abundant precaution, retention money will be withheld (and kept in deposit with the Employer) at the rate of 5% of gross value of work done in each R.A. Bill (including Final Bill). Retention money withheld shall bear no interest for the entire duration of the contract (including extension of time if any) and defects liability period.

18.2 Release of retention money

On satisfactory completion of the work (to be certified by the Employer) and handing over the work to the Employer, 50% (Fifty percent) of total retention money (withheld as per Clause 18.1 above) will be refunded to the Contractor against a Bank Guarantee for equivalent amount and valid up to the end of defects liability period. The balance cash retention and the Bank Guarantee will be retained by the Employer as the security against non-compliance with the Contractual

obligations / prescribed specifications and defects in defects liability period. The balance retention money will be refunded/ returned to the Contractor after the defects liability period, only after rectification of the defects by the Contractor at his cost, noticed during the defects liability period to the satisfaction of Employer. Bank Guarantee format shall be as per the requirement of the Employer.

The Employer shall be free to set off retention money against expenditure incurred by him, in rectification of the defects in case the Contractor fails to attend to the defects in time satisfactorily.

18.3 Indebtedness

The Employer may withhold any money due to the Contractor for clearing indebtedness of the Contractor to the Subcontractor, suppliers, hirers, workers, staff, etc. should complaints of such nature come to the notice of the Employer.

19.0 Documentation, training and special tools

All costs towards documentation and training mentioned in this section are deemed to be already included in the Contract Sum / Contract Price by the Contractor. No separate charges shall be payable towards such items.

The payment against final invoices / bills (except the retention money) shall be made only on completion of various documentation, training and special tools by the Contractor.

19.1 As built documents, drawings and specifications

Wherever the Contractor has provided design for his own works, the Contractor shall provide as-built drawings, specifications and documentation in 6 hard copies of good quality and 2 soft copies on CDs.

Wherever the Contractor has executed works to design provided by the Employer, the Contractor shall mark up clear copies and carry out joint inspection by Employer / Employer's representatives to cross check and then hand over such copies to the Employer for final records. 1 Copy of relevant drawings / documents shall be provided to the Contractor by Employer for such marking up.

19.2 Operation and maintenance manuals

For all materials supplied by / all constructions executed by the Contractor, the Contractor shall provide to the Employer 6 sets of Operations and Maintenance manuals. Two CDs for various soft copies, drawings, technical catalogues, spares identification catalogues etc. shall also be provided by the Contractor to the Employer.

19.3 Training

Class room and hands-on training shall be provided by the Contractor to Employer's operations personnel. It is estimated that such three courses would need to be conducted to train various staff from the Employer. Proper audio-visual tools, hand-outs, literatures, samples / cut-sections etc. shall be made available by the Contractor for such training.

19.4 Special tools

Any special tools required for maintenance of any systems shall be provided by the Contractor to the Employer in 6 sets of proper tool boxes. Such special tools include the items that are normally not available in the hardware shops within India as standard items. These include any special spanners, screw drivers, testers, drills, pneumatic tools etc. that are modified to specially suit the equipment / material supplied by the Contractor.

20.0 Confidentiality

The Contractor shall treat the details of the Contract as private and confidential, save insofar as may be necessary for the purpose thereof, and shall not publish or disclose the same or any particular hereof in any trade or technical paper or elsewhere without the previous consent in writing of the Employer.

21.0 Schedule of Fines / Charges for violations of rules and regulations.

This schedule of fines / charges would be applicable to Contractors who / whose subcontractors / vendors are in breach of the employer's Site Safety, Site Safety Cycle and Environmental Rules and Regulations

No.	Nature of Offence	Charge / fine amount
1.	Smoking in an unauthorised area and/or consumption of alcohol and/or use of illegal substances.	Rs. 500
2.	Burning of waste or smouldering of combustible materials on site other than for heat treatment processes required for the execution of the Sub Contract works.	Rs. 2,000
3.	Failure to wear personal protective equipment (P.P.E.) e.g. Safety helmets, safety boots, goggles etc. respirator, ear plugs, safety belts which shall include failure to anchor belt to a secure structure.	Rs. 500 per worker when lack of enforcement of the usage of P.P.E. by the Subcontractor is observed by the employer. OR Rs. 1,000 where issuance of the required P.P.E. by the Subcontractor equipment is not carried out.
4.	Failure to attend general safety induction course conducted by the employer / the employer.	Rs. 300 per worker for not attending the course and workers to attend course within 2 working days or be dismissed.
5.	Failure to attend a notified site safety meeting.	Rs. 2,000
6.	Failure to submit, within the specified time to the employer, safety supervisor reports which shall include other relevant statutory reports made under the F&IUO Cap. 59, tool box briefing records, weekly labour return, issuance of personal protective equipment records, safety data sheets of toxic and harmful materials and others related certificates.	Rs. 2,000
7.	Failure to submit a written report for an accident and/or other dangerous occurrence, to the employer within 24 hours of its occurrence.	Rs. 2,000
8.	Failure to carry out within the specified time the necessary improvement action against any notified safety violation.	Rs. 5,000
9.	Damage to or misuse of the employer's property.	Rs. 2,000 and payment by Contractor for the cost of items damaged.
10.	Failure to maintain work area, facility storage and preparation yard, office premises and workers changing and rest area in a clean and orderly state and free from health and fire hazards.	Rs. 2,000 and the Contractor shall clean up the disorderly and untidy areas within 1 day.
11.	Obstruction of passageways, entrances, door ways, stairs, access to fire fighting equipment etc. and/or the erection unsafe accesses and crossings.	Rs. 2,000
12.	Use of equipment that has not been examined by an approved person as required under the Factories and Industries Undertaking Ordinance and its related regulations.	Rs. 5,000
13.	Using defective or uncertified slings for lifting operations.	Rs. 5,000
14.	Executing unsafe hoisting of materials and include unsafe use of lifting appliances.	Rs. 5,000
15.	Erecting and/or using unsafe or unstable, scaffolds, working platforms and temporary structures.	Rs. 5,000
16.	Failure to provide and use proper working platforms and safe means of access to the work place, where work is required to be carried beyond a person's normal reach.	Rs. 5,000.00 and the worker to be immediately banned from the site if an individual receives 2 violations.

No.	Nature of Offence	Charge / fine amount

17.	Allowing workers to occupy or work on unguarded elevated platforms, floor edges and without adopting adequate safety measures against the risk of a person falling from height.	Rs. 7,000.00
18.	Not providing safety barricades/barriers to hazardous floor edge openings, gaps and shafts.	Rs. 7,000
19.	Rendering scaffold or working platform unsafe by tampering/alternation.	Rs. 5,000 and all rectification costs to be borne by the contractor.
20.	Placing of heavy items unsafely on scaffold or working platform.	Rs. 2,000
21.	Throwing or allowing objects to drop from heights.	Rs. 7,000 and workers to be immediately banned from the site.
22.	Stacking or leaving materials including work in progress articles and tools in unstable condition and or along floor edges such they are likely to endanger workers.	Rs. 7,000
23.	Failure to effectively cordon off guard and warn other workers from entering into the danger areas when they are likely to be affected by falling materials from the Sub Contract Work.	Rs. 7,000
24.	Violating the permit to work system for example, but not limited to Failure to comply to Look out procedures, Confined space entry permits, Other hazardous work e.g. hot work	Rs. 5,000 and workers to be immediately banned from the site.
25.	Dismantling and rendering any safety guards or protective features of any part of a machine or any part of a building structure to the extend that such guards and protective features are not operational or are incapable of providing the necessary protection for its design and purpose.	Rs. 7,000
26.	Adopting unsafe tapping, connections, termination of electrical lines and including the use of defective electrical fittings, power cables and electrical tools. Allowing cables / equipment to be submerged in water.	Rs. 2,000
27.	Using any defective or unsafe equipment.	Rs. 2,000
28.	Unauthorised use of fire equipment provided for emergency purposes.	Rs. 2,000
29.	Failure to comply with an order issued by the employer's Construction manager, site agent, site safety supervisor safety officer and environmental officers in regard to safety/environmental matters.	Upto Rs. 7,000
30.	Threatening safety / personnel misbehaviour, fighting or intentional causing hurt to others.	Rs. 1,00,000 fine worker to be banned from the site and a report will be made to the police.
31.	Other safety/environmental violations which are in breach of safety or environmental ordinances and regulations.	Rs. 1,000
32.	Failure to wear safety harness and anchor to a secure structure, whilst working on a gondola.	Rs. 7,000 and worker to be banned from site immediately.
33.	Tampering with the safety features of a gondola / winches ./ scaffolding	Rs. 7,000 and worker to be banned from site immediately.
34.	Access and egress to gondola other than at a designated landing.	Rs. 7,000 and worker to be banned from site immediately.
35.	Failure to provide valid certificates for lifting appliances and accessories including any lifting appliances / accessories on vehicles delivering goods to the site, or for plant being used on site.	Rs. 5,000
36.	Failure to provide voltage-reducing devices on welding machines.	Rs. 2,000

No.	Nature of Offence	Charge / fine amount
37.	Obstruction of passageways, entrances, door ways, stairs, access to fire fighting equipment etc. and/or the erection unsafe accesses and crossings.	Rs. 2,000

38.	Failure to attend the Morning Site Assembly Meetings.	Rs. 500
39.	Failure to tidy up the Sub contract works after each day work	Rs. 1,200
40.	Failure to attend the Site Safety Walk	Rs. 1,000
41.	Failure to provide Site Safety Supervisor/Representative as per the requirement of the latest ordinance.	Rs. 2,000
42.	Failure to use stairs in lieu of lifts	Rs. 500 per event